

GENERAL DEFENCES

'General defences' are those defences which do not depend upon the nature of tort. They are available in all types of torts.

These general exceptions, or conditions, or justification of torts are,

- (1) Consent (Volenti non-fit injuria)
- (2) Act of God
- (3) Inevitable accident
- (4) Necessity
- (5) Private Defence
- (6) Acts causing slight harm
- (7) Statutory Authority
- (8) Plaintiff the wrongdoer
- (9) Judicial or Quasi-Judicial acts
- (10) Parental and quasi parental acts

(1)- VOLENTI NON-FIT INJURIA

When a person consents for infliction of harm upon himself, he has no remedy for that in Tort. That means, if a person has consented to do something or has given permission to another to do certain thing, and if he is injured because of that, he cannot claim damages. For example, A purchases tickets for a Car race and while watching the race, an collision of cars happens and the person is injured. Here, by agreeing to watch the race, which is a risky sport, it is assumed that he voluntarily took on the risk of being hurt in an accident. Thus, he cannot claim compensation for the injury. Such consent may be implied or express. For example, a person practicing the sport of Fencing with another, impliedly consents to the injury that might happen while playing.

Padmavati vs. Dugganaika - Two strangers took lift in the jeep. Suddenly one of the bolts fixing one wheel gave way toppling the jeep. One of the strangers got injured and another was killed. It was held that neither driver nor master could be made liable as it was a case of sheer accident as well as passengers voluntarily got into the jeep. The principle of volenti non fit injuria was applied in this case.

Wooldrige vs. Sumner - The plaintiff, a photographer was taking photographs while standing at the boundary of arena. One of the horses, belonging to the defendants, rounded the bend too fast. As the horse galloped furiously the plaintiff was frightened and he fell into horses course & got seriously injured by the galloping horse. Defendant was held not liable. And it was opined that the spectator in such a game or competition takes the risk (voluntarily assumes the risk) of such damage. For application of the maxim, certain condition must be fulfilled.

ESSENTIAL ELEMENTS

- Consent must be voluntarily given
- The act for which consent is given, must not be illegal.
- Knowledge

Please Note: The **maxim** is **volenti non-fit injuria and not scienti fit injuria**. There mere knowledge of risk is not enough and it is incorrect to say that no injury is done to one who knowingly does an act. The above-stated proposition of law has been explained through following given cases.

EXCEPTIONS

Rescue Cases

When the plaintiff suffers injury while saving someone. For example, A's horse is out of control and is galloping towards a busy street. B realizes that if the horse reaches the street it will hurt many people and so he bravely goes and control's the horse. He is injured in doing so and sue's A. Here A cannot take the defence that B did that act upon his own consent. It is considered as a just action in public interest and the society should reward it instead of preventing him from getting compensation.

Cutler vs. United Dairies (London) Ltd.

In this case, a horse attached with a van became restive & entered a field adjoining the plaintiff's garden. The driver was trying to pacify it but in vain. He shouted for help. The Plaintiff on hearing this went and attempted to hold the

horse but it threw him causing serious injury to him. It was held by the court that since there was no need to take any risk and no one was in danger the Plaintiff cannot recover.

Unfair Contract Terms

Where the terms of a contract are unfair, the defendant cannot take this defence. For example, even if a laundry, by contract, absolves itself of all liability for damage to clothes, a person can claim compensation because the contract is unfair to the consumers.

Negligence

Generally, the maxim does not apply to cases of negligence. When the plaintiff consents to take some risk the presumption is that the defendant will not be negligent. If a player negligently or deliberately hits another during the game or where an operation is unsuccessful due to the surgeon's negligence, the defendant cannot plead *volenti non fit iniuria* because the plaintiff never consented to an injury caused in that manner.

Consent to unlawful act

No consent can legalise an unlawful act. **E.g.** a kicking match or a duel with sharp swords. Unlawful acts remain unlawful even after consent. Thus, it was held in *R.V. Donovan* that no person can license other to commit crime.

Breach of statutory authority

The maxim has no validity against an action based on breach of statutory duty. If an employer to whom duty has been imposed by Statute causes injury to workman, then employer can't take defence of consent.

(2) PLAINTIFF THE WRONGDOER

A person cannot take advantage of his own wrong. This principle has been in use since a long time as it is just and equitable. For example, a person trespassing one another's property is injured due to darkness. He cannot claim compensation because he was injured due to an action which was wrong on his part. However, this defence exists only if the injury happens because of a wrongful act of the plaintiff. It does not exist if the injury

happens because of a wrongful act of the defendant even if the plaintiff was doing a wrongful but unrelated act.

(3) INEVITABLE ACCIDENT

The defendant may escape liability by establishing that the cause of the plaintiff's injury was an accident rather than any wilful or negligent act on his part.

An inevitable accident is one in which no human foresight could have prevented, an accident which could not have been prevented by the exercise of reasonable care on the part of the defendant.

Inevitable accident is a defence in which the burden of proof is on the defendant to show that what happened was an unforeseeable accident.

In **Stanley vs. Powell (1891)**, a case of trespass to the person, the defendant successfully pleaded inevitable accident when he accidentally shot the plaintiff. A pellet from his gun, when he was shooting pheasants, ricocheted off a tree at an unusual angle, and injured the plaintiff.

(4) ACT OF GOD

An act of God in a legal sense is an extraordinary occurrence of circumstance which could not have been predicted or prevented and happens because of natural causes. Nobody can predict, prevent, or protect from a natural disaster such as an earthquake or flood. Thus, it is unreasonable to expect a person to be liable for damages caused by such acts of God. There are two essential conditions for this defence

- the event must be due to a natural cause and
- it must be extraordinary or something that could not have been anticipated or expected.

For example, heavy rains in the monsoon are expected and if a wall falls and injures someone, it cannot be termed an act of god because protection for such expected conditions should have been taken. But if a building falls due to a massive earthquake and injures and kills people, this defence can be used.

In *Ramalinga Nadar vs Narayan Reddiar* AIR 1971, it was held that criminal activities of an unruly mob are not an act of God.

(5) PRIVATE DEFENCE

As per section 96 of IPC, nothing is an offence that is done in exercise of the right of private defence. Thus, law permits the use of reasonable and necessary force in preventing harm to human body or property and injuries caused by the use of such force are not actionable. However, the force must be reasonable and not excessive.

In *Bird vs Hollbrook* 1892, the defendant used spring guns in his property without notice. It was held that he used excessive force and so was liable for plaintiff's injury even though the plaintiff was trespassing on his property.

(6) MISTAKE

Generally, mistake is not a valid defence against an action of tort. Thus, hurting a person under the mistaken belief that he is trespassing on your property, will not be defensible. However, in certain cases, it could be a valid defence. For example, in the case of malicious prosecution, it is necessary to prove that the defendant acted maliciously and without a reasonable cause. If the prosecution was done only by mistake, it is not actionable. Further, honest belief in the truth of a statement is a defence against an action for deceit.

(7) NECESSITY

If the act causing damage is done to prevent a greater harm, it is excusable. For example, a Ship ran over a small boat hurting 2 people in order to prevent collision with another ship which would have hurt hundreds of people is excusable.

Thus, in *Leigh vs Gladstone* 1909, force feeding of a hunger striking prisoner to save her was held to be a good defence to an action for battery.

(8) STATUTORY AUTHORITY

An act that is approved by the legislature or is done upon the direction of the legislature is excused from tortious liability even though in normal circumstances, it would have been a tort. When an act is done under the authority of an Act, it is a complete defence and the injured party has no remedy except that is prescribed by the statute.

In *Vaughan vs Taff Valde Rail Co* 1860, sparks from an engine caused fire in appellant's woods that existed in his land adjoining the railway track. It was held that since the company was authorized to run the railway and since the company had taken proper care in running the railway, it was not liable for the damage.

(9) JUDICIAL OR QUASI-JUDICIAL ACTS

No action lies for acts done, or words spoken, by a judge in exercise of his judicial office, although they may be malicious. It is founded on the principle of public benefit that Judges should be at liberty to exercise their function independently and without fear of consequences.

Limits of such protection:

(A) No such protection is granted if a magistrate is acting mala fide and outside his jurisdiction.

Sailajanand Pandey v Suresh Chandra Gupta - The magistrate acting mala fide, illegally and outside his jurisdiction, ordered the arrest of the plaintiff. The Patna High Court held that he was not entitled to the protection given by the Judicial Officer's Protection Act, 1850 and was, therefore, liable for the wrong of false imprisonment.

(B) The protection of judicial privilege applies only to judicial proceedings as contrasted with administrative or ministerial proceedings and where, a judge acts both judicially and ministerial or administratively, the protection is not afforded to the act done in the latter capacity.

(10) PARENTAL OR QUASI PARENTAL AUTHORITY

Parents and persons in loco parentis have a right to administer punishment on a child for the purpose of correction, chastisement or training. However, one must remember that such an authority warrants the use of reasonable and moderate punishment only and therefore, if there is an excessive use of force, the defendant may be liable for assault, battery or false imprisonment, as the case may be.